subjects. On the other hand, a State Legislature can legislate on the subjects enumerated in the State List and Concurrent List. However, the doctrine of incidental and ancillary powers is applied in India also.

**DOCTRINE OF INCIDENTAL AND ANCILLARY POWERS**

**1. Meaning of the Doctrine**

The legislative powers of the Parliament and the State Legislatures are mentioned in the Seventh Schedule of the Constitution. Every such power (i.e., expressly mentioned legislative power) carries with it the incidental or ancillary power which is necessary to execute that power. In other words, the incidental and ancillary powers are those powers which are required to be exercised by the legislatures for the effective exercise of legislative powers expressly bestowed on them by the Constitution. In USA[38], such powers are called as "necessary and proper powers" while in Australia, they are described as "powers incidental to the execution of that power".

According to this doctrine, the entries enumerated in the three legislative lists are not to be read in a narrow or restricted sense and each general word in an entry should be held to extend to all incidental or ancillary matters which can fairly and reasonably be comprehended in it[39]. Hence, the power to levy tax would include the power to make provisions for checking tax evasion[40]. Similarly, the power to legislate with respect to collection of rent includes the power to legislate with respect to remission of rent[41].

However, the above logic of wider interpretation does not mean that the scope of the incidental or ancillary power can be extended to any unreasonable extent. Hence, the power to levy tax cannot be held to include the power to confiscate goods[42].

Further, this doctrine cannot be used as a cloak for extending the power of a legislature so as to comprehend a subject which is explicitly mentioned in a list. For example, the legislative power in respect of "betting and gambling" in Entry 34 of the State List does not include the power to impose taxes on betting and gambling which is explicitly mentioned as a separate subject in Entry 62 of the State List[43].

Moreover, this doctrine cannot be extended to the exercise of the legislative power colourably or by fraud on the constitution.

**2. Rationale of the Doctrine**

The Supreme Court has founded the doctrine of incidental and ancillary powers to relieve a statute from its invalidity or unconstitutionality. The court, while explaining the rationale of the doctrine, made the following observation[44]:

"The courts have applied the doctrine of "pith and substance" and in some cases the doctrine of "incidental" or "ancillary" or "subsidiary power" of the legislature to uphold the law or to validate the law declared by the courts as invalid. Thereon, one of the doctrines is applied when the court finds that the law in pith and substance is within the legislative competence but incidentally trenches upon another subject of legislation. Equally, the doctrine of "ancillary or subsidiary power" of the legislature is applied when the court records a finding that the impugned Act is substantially within the legislative competence, but incidentally it trenches upon another subject of legislation assigned either to Parliament or the Legislature of a State as the case may be."